

M/S S.S. Industries v. State of U.P.

Allahabad High Court · Division Bench · 3 April 2018 · Writ-C No. 8819 of 2018 · **Recovery citation quashed; EE to redetermine dues after objections.**

HEADNOTE

On the electricity department's concession that a demand under recovery was incorrectly billed and did not represent actual dues, the Allahabad High Court quashed the recovery citation dated 5 February 2018, stayed enforcement of the 19 February 2018 demand bill, and directed the Executive Engineer to determine actual dues and raise a fresh demand in accordance with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 after considering the consumer's objections. Residual grievance was left to the statutory forums.

FACTUAL SUMMARY

M/s S.S. Industries challenged a recovery citation dated 5 February 2018 and a demand bill dated 19 February 2018 issued by the Executive Engineer. The writ was listed twice so that the electricity department could obtain instructions. At the final hearing, counsel for the department stated on oral instructions that the billing appeared incorrect and that the sum under recovery was far less than the actual dues. The Court treated the recovery as requiring revision and would not keep the writ pending.

HOLDING-UNITS

INTERPLAY · EA2003 / UP-2005

recovery citation — conceded incorrect billing

HOLDING

Where the licensee's counsel concedes that the billing under a recovery citation appears incorrect and the sum sought to be recovered does not represent actual dues, the High Court will quash that citation, keep the existing demand unenforceable until a revised order, and direct the Executive Engineer to determine actual dues and raise a fresh demand in accordance with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 after considering the consumer's objections; further grievance lies to the forums provided under those enactments. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACTUAL QUANTUM OF ELECTRICITY DUES AND MERITS OF THE 19 FEBRUARY 2018 DEMAND BILL

The Court acted on the licensee's oral concession that billing appeared incorrect and that the recovered sum was less than actual dues; it did not quantify dues or decide the bill on merits, leaving redetermination to the Executive Engineer. ¶ 1